

25CMCV01380 25CMCV01380

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-02

Motion: MOTION TO ENFORCE SETTLEMENT AGREEMENT AND ENTER JUDGMENT AGAINST DEFENDANT HUNTER
NOA AND JANNY DORA NOA DATE: September 2, 2026 TIME: 8:30 A.M.

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Case Number: 25CMCV01380 Hearing Date: September 2, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

MERCURY

INSURANCE COMPANY, a corporation,

Plaintiff,

vs.

HUNTER NOA, an

individual; JANNY DORA NOA, an individual,

Defendants.

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CASE NO: 25CMCV01380

[TENTATIVE] ORDER RE: MOTION TO ENFORCE SETTLEMENT AGREEMENT AND
ENTER JUDGMENT AGAINST DEFENDANT HUNTER NOA AND JANNY DORA NOA

DATE: September 2, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Plaintiff
MERCURY INSURANCE COMPANY

Responding Party: None

Notice: ok

Tentative Ruling: Plaintiff's
Motion to Enforce Settlement Agreement is GRANTED.

I.
BACKGROUND

This is automobile subrogation action. Plaintiff Mercury Insurance Company ("Plaintiff") alleges that IT is entitled to recover the sum of \$50,667.49 from Hunter Noa and Janny Dora Noa (collectively, the "Defendants") for property and/or personal injury damages to Plaintiff's insured arising from an automobile accident.

On August 19, 2025, Plaintiff filed this action alleging one cause of action for Subrogation.

On November 10, 2025, Plaintiff filed a Notice of Settlement of Entire Case.

On July 20, 2026, Plaintiff filed a Motion to Enforce Settlement Agreement and Enter Judgment Against Defendants.

As of October 28, 2026, no Opposition or Reply have been filed. Pursuant to Code Civ. Proc. § 1005(b), all reply papers must be filed and served at least five court days before the hearing. (Code Civ. Proc. § 1005(b).) Accordingly, any reply papers now filed are untimely, and the Court exercises its discretion to refuse to consider untimely filed papers. (Cal. R. Ct., Rule 3.1300(d); Mackey v. Bd. of Trustees of California State Univ. (2019) 31 Cal.App.5th 640, 657.)

II.

ANALYSIS

A.

Legal
Standard

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement . . ." (Code Civ. Proc. § 664.6(a).)

B.

Discussion

Plaintiff alleges that this matter settled on November 6, 2025 by way of Stipulation for Entry of Judgment and Installment Payments (the "Stipulation") whereby Defendants agreed to make installment payments for Plaintiff. (Declaration of Brian P. Tapper ("Tapper"), ¶ 2, Exh. A.) The Stipulation calls for Defendants to pay: (a) \$400.00 on or before the 1st of each month from November 1, 2025 to April 1, 2036; and (b) \$267.49 on or before May 1, 2036, with the installments totaling \$50,667.49. (Id., ¶ 3, Exh. A.) Pursuant to the Stipulation, in the event of default Plaintiff may cause the Stipulation to be filed with the Court along with a Declaration reciting the default in payment and setting forth the full amount then owing, and judgment may be rendered thereon. (Tapper Decl., Exh. A, ¶ 5.) As attested to by Plaintiff's counsel, Defendants have only made a payment of \$400.00 on November 6, 2025 and Plaintiff has received no further payments from Defendants. (Tapper Decl., ¶ 4.)

Plaintiffs request that judgment be entered against Defendants in the principal sum of \$50,667.49, plus interest (\$5,760.82) at the rate of five percent (5%) per annum from April 1, 2024 through July 10, 2026, less credit for all payments received totaling \$400.00, plus court costs of \$509.00, for a total Judgment of \$56,537.31, with interest continuing to accrue thereafter at the rate of \$6.94 per day until paid. (Tapper Decl., ¶ 5.)

Upon review of the Agreement attached as Exhibit A to the Declaration of Plaintiff's counsel Brian P. Tapper, the Court finds that the parties stipulated to settlement of this case and stipulated that the Court retain jurisdiction to enforce the Stipulation pursuant to Code of Civil Procedure § 664.6. (Tapper Decl., Exh. A, ¶ 9.)^[1] Pursuant to the terms of the Agreement and the Stipulation, Defendants were to pay Plaintiff the total sum of \$50,667.49 plus interest at the rate of five percent (5%) from April 1, 2024 and court costs. The declaration of attorney Tapper establishes that Defendants made the first payment but no payment thereafter. Attorney Tapper's declaration establishes that, in the event of a default, the parties agreed to entry of judgment for any unpaid amounts less credit for all payments made prior to default, plus any additional court costs incurred by Plaintiff.

III.

CONCLUSION

For the

foregoing reasons, the Plaintiff's Motion to Enforce Settlement Agreement is GRANTED. Judgment is ordered entered in favor of Plaintiff against Defendants in the amount of \$56,537.31 consisting of \$50,667.49 principal, minus \$400.00 credit, plus \$5,760.82 in interest, and \$509.00 court costs.

[1] The Court notes that Defendants were served with process in this matter but never filed an Answer. However, the parties' stipulation for entry of judgment constitutes a general appearance sufficient for the Court to exercise its jurisdiction. (See *Rockefeller Technology Investments (Asia) VII v. Changzhou SinoType Technology Co., Ltd.* (2020) 9 Cal.5th 125, 139 ("Process is waived by a general appearance, in person or by attorney, entered in the action, or by some act equivalent thereto, such as the filing of a pleading in the case or by otherwise recognizing the authority of the court to proceed in the action")(emphasis in original).)